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Hearing Date: 9/16/2026 – 8:30

a.m.

Case No.: 24NNCV05951

Trial Date: 1/19/2027

Case Name: WILDA ROKOS v. STUDIO CITY PL, LP; et al.

TENTATIVE RULING – MSJ

BACKGROUND

Plaintiff, Wilda Rokos, filed the complaint in this action on 11/20/2024 against Defendants – (1) Studio City Pl, LP; (2) Cd Holdings, LLC; and (3) Does 1-25.

Generally speaking, Plaintiff's allegations stem from Plaintiff tripping and falling over a wheel stop in Defendants' parking lot.

Plaintiff's Complaint alleges two causes of action for: (1) General Negligence and (2) Premises Liability.

Both causes of action allege as follows:

Defendants,

and each of them on said day and place managed, owned, maintained, operated, controlled, designed and or safeguarded the premises located at 11239 Ventura

Blvd., Studio City, CA 91604 in an unreasonable and unsafe manner so as to proximately cause Plaintiff to be injured in the following manner: Plaintiff was walking from her car toward the elevators in the underground subject parking lot. As she was walking, Plaintiff tripped and fell over a wheel stop that was positioned in a dangerous manner in an area of the subject parking lot with inadequate lighting. The Defendants knew or should have known of this dangerous condition. Defendants failed to barricade the area, correct the dangerous condition, and/or warn of the hazardous condition. The conduct of the Defendants and/or its employees was below the standard of care and was the cause of the Plaintiff's injuries.

(Pl. Compl, p.4.)

Defendant, Studio City PL, LP, now moves for summary judgment on Plaintiff's Complaint.

RELIEF REQUESTED;

Defendant, Studio City PL, LP, moves for summary judgment on Plaintiff, Wilda Rokos' Complaint.

Defendant moves pursuant to CCP § 437c and on the grounds that there are no triable facts that defendant was negligent and no triable facts that the wheel stop over which Plaintiff allegedly tripped was a dangerous condition of the property.

PROCEDURAL

Moving Party: Defendant, Studio City PL, LP

Responding Party: Plaintiff, Wilda Rokos

Moving Papers: Motion; Separate Statement; Exhibits in Support of MSJ; Declaration of Gabriele M. Lashly; Declaration of Ned Wolfe, P.E.; Declaration of David A. Krauss, PH.D.

Opposing Papers: Memorandum; Response to Separate Statement; Plaintiff's Additional Undisputed Material Facts; Plaintiff's Objections to Defendant's Evidence; Plaintiff's Compendium of Exhibits in Opposition

Reply Papers: Reply; Reply to Plaintiff's Additional Undisputed Material
Facts; Defendant's Evidentiary Objections to Plaintiff's Exhibits

LEGAL STANDARD – MOTION SUMMARY JUDGMENT

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP, § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. (CCP, § 437c(p)(2).)

Courts

"liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

"Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause

of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (CCP, § 437c(p)(2).)

To

establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence sufficient to establish a triable issue of material fact on the merits of the defendant's showing. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.)

TENTATIVE RULING

Preliminary

The Court

notes that although eCourt indicates that the instant Defendant's MSJ on hearing for 9/16/2026 ends with a Reservation I.D. # of 7414, Defendant's moving papers indicate that the instant hearing ends with a Reservation I.D. # of 7415.

Confusion

Defendant's,

Studio City PL, LP, MSJ is not a model of clarity.

The elements

of a cause of action for negligence are: (1) the defendant had a duty to use due care, (2) that he [or she] breached that duty, and (3) that the breach was the proximate or legal cause of the resulting injury. (Vasquez v. Residential Investments, Inc. (2004) 118 Cal.App.4th 269, 278 citing Nally v. Grace Community Church (1988) 47 Cal.3d 278, 292-293.)

The elements

of a cause of action for premises liability are the same as those for negligence. (Jones v. Awad (2019) 39 Cal.App.5th 1200, 1207 citing Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) Accordingly, the plaintiff must prove a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury. (Jones

v. Awad, supra, 39 Cal.App.5th at 1207 citing Beacon Residential Community Assn. v. Skidmore, Owings & Merrill LLP (2014) 59 Cal.4th 568, 573.)

The defendant bears the initial burden of showing that the plaintiff cannot establish one or more elements of the cause of action, or that there is an affirmative defense to it. (Jacobs v. Coldwell Banker Residential Brokerage Co. (2017) 14 Cal.App.5th 438, 443 citing CCP § 437c(o) & Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

Here, Defendant's MSJ is entirely unclear as to whether Defendant is attempting to argue that Plaintiff cannot establish one or more elements of a cause of action, or if Defendant is attempting to argue that there is an affirmative defense.

If Defendant is attempting to negate an element of Plaintiff's claims, i.e., argue that Plaintiff cannot establish one or more elements of a cause of action, Defendant's MSJ is entirely unclear on how it is doing that.

Defendant's MSJ has a Section IV entitled "There are no Triable Issue That Studio Negligently Maintained the Property." In this section, Defendant does not explain how its arguments are demonstrating that Plaintiff cannot establish one or more elements of a cause of action.

For example, Defendant argues that "Plaintiff does not allege that wheel stops are a dangerous condition per se. Rather, the complaint alleges that the wheel stop was "positioned in a dangerous manner in an area with inadequate lighting." (Def. Mot., p. 7, Ins. 21-23.)

The Court is not clear as to what element Defendant's argument is attacking. Is Defendant's argument attacking the element of duty, breach, causation, or damages? Is it necessary that Plaintiff must allege that wheel stops are a dangerous condition per se in order for Plaintiff to succeed in this action? Where is Defendant getting this standard?

Further,

if Defendant is arguing that the wheel stop is not a “dangerous condition,” what element [duty, breach, causation, or damages] is Defendant attempting to argue Plaintiff cannot establish?

Defendant’s

MSJ provides no such answer or clarity.

Further,

Defendant’s MSJ argues that the position of the wheel stop conformed to the locations indicated in the building code. (See Def. Mot., p. 7, Ins. 24-26.)

Again,

what element [duty, breach, causation, or damages] is Defendant attempting to negate?

Further,

Defendant’s MSJ argues that it was never advised that anybody tripped over a wheel stop and that a visual inspection would not have exposed that the wheel stop was in a dangerous condition because the parking stall was designed according to the standards of the California Building Code and Americans with Disabilities Act. (See Def. Mot., p. 7, Ins. 27-28 & p. 8 Ins. 1-2.)

Again,

what element, or elements [duty, breach, causation, or damages] is Defendant attempting to negate?

Defendant’s

MSJ provides no such answer.

Defendant’s

MSJ also argues that the wheel stop was open and obvious; therefore, Defendant is not liable as a matter of law. (Def. Mot., p. 8, Ins. 13-15.)

Again,

Defendant fails to explain if Defendant is attempting to negate an element of Plaintiff’s claims [duty, breach, causation, or damages] or if Defendant is attempting to establish an affirmative defense.

Confusingly,

despite all the arguments in the moving papers, in reply, Defendant argues that it cannot be the proximate cause of the fall.

Code

Compliant

Defendant

argues that its MSJ should be granted because the wheel stop was entirely code compliant with the California Building Code (CBC) and ADA-requirements. (See Def. UMFs 6-14.)

Although

Defendant's moving papers do not explicitly state as such, it appears that Defendant is arguing that the CBC and ADA-requirements are the standard of care, and since Defendant complied with the CBC and ADA, it did not breach the standard of care.

Here,

the Court does not find Defendant's arguments availing.

The

Court fails to see how Defendant met its burden in establishing negligence per se is applicable to the instant set of facts.

As

explained in *Jones v. Awad*:

Negligence per se is an evidentiary

doctrine, rather than an independent cause of action. (*Quiroz v. Seventh Ave. Ctr.* (2006) 140 Cal.App.4th 1256, 1285–1286, 45 Cal.Rptr.3d 222.)

It can be applied generally to establish a breach of due care under any negligence-related cause of action. (*Norman v. Life Care Centers of America, Inc.* (2003) 107 Cal.App.4th 1233, 1248, 132 Cal.Rptr.2d 765.) Therefore, the doctrine of negligence per se is within the scope of pleadings that allege general negligence, as proof of a breach of duty is not limited to common law standards of care. (*Brooks v. E.J. Willig Truck Transp. Co.* (1953) 40 Cal.2d 669, 680, 255 P.2d 802.)

(*Jones*

v. Awad (2019) 39 Cal.App.5th 1200, 1210-1211.)

However,

as further explained in *Jones v. Awad*:

While courts have applied negligence

per se to building code violations, it has only been applied in limited

situations. For instance, every case cited by plaintiff involved a defendant

who played a professional role in the design or construction of the

building. In *Krusi v. S.J. Amoroso Constr. Co.* (2000) 81

Cal.App.4th 995, 97 Cal.Rptr.2d 294, the purchasers of a two-story commercial

building sued the architects and contractors who designed and constructed the

building. In *Huang v. Garner* (1984) 157 Cal.App.3d 404, 203

Cal.Rptr. 800, purchasers of an apartment building sued the building designer

for the project and the project's civil engineer. In both *Morris v.*

Horton (1994) 22 Cal.App.4th 968, 27 Cal.Rptr.2d 585 and *Keru*

Investments, Inc. v. Cube Co. (1998) 63 Cal.App.4th 1412, 74

Cal.Rptr.2d 744, property owners sued the individuals who performed the

construction work. On the other hand, the court in *Gravelin v.*

Satterfield (2011) 200 Cal.App.4th 1209, 132 Cal.Rptr.3d

913 declined to assign ordinary landowners the duty to comply with

building code requirements generally.

(*Jones*

v. Awad (2019) 39 Cal.App.5th 1200, 1212.)

Here,

the Court fails to see how application of negligence per se is applicable to

the instant set of facts.

Defendant

does not set forth any facts that establish that Defendant played a

professional role in the design or construction of the building.

Dangerous

Condition

Defendant

argues that "Plaintiff does not allege that wheel stops are a dangerous

condition per se. Rather, the complaint alleges that the wheel stop was

"positioned in a dangerous manner in an area with inadequate lighting." (Def.

Mot., p. 7, Ins. 21-23.)

Here,
it is unclear if Defendant is attacking the element, or elements, of duty,
breach, causation, or damages.

Defendant
makes no attempt to explain what element the issue of a “dangerous condition”
applies to.

In
any event, there is a dispute of material fact as to whether or not there was a
dangerous condition in the instant case. (See Pl. Compendium of Exhibits, Ex. A,
Decl. Mark J. Burns, ¶¶ 6-19; & See Def. Ex. H (Excerpt from deposition of
Plaintiff Wilda Rokos), p. 40, Ins. 3-10 [Plaintiff stating she didn't see the
wheel stop in the parking stall].)

No
Notice

Defendant
argues that it was never advised that anybody tripped over a wheel stop and
that a visual inspection would not have exposed that the wheel stop was in a
dangerous condition because the parking stall was designed according to the
standards of the California Building Code and Americans with Disabilities Act.
(See Def. Mot., p. 7, Ins. 27-28 & p. 8 Ins. 1-2.)

Defendant
fails to explain if it is attempting to negate duty, breach, causation, or
damages.

Defendant
appears to be arguing that it did not have notice of the alleged dangerous
condition; therefore, it cannot be liable.

The
Court does not find Defendant's argument availing.

In relevant part of Ortega:

The

plaintiff need not show actual knowledge where evidence suggests that the dangerous condition was present for a sufficient period of time to charge the owner with constructive knowledge of its existence. Knowledge may be shown by circumstantial evidence “which is nothing more than one or more inferences which may be said to arise reasonably from a series of proven facts.” (Hatfield, *supra*, 18 Cal.2d at p. 805.) Whether a dangerous condition has existed long enough for a reasonably prudent person to have discovered it is a question of fact for the jury, and the cases do not impose exact time limitations. Each accident must be viewed in light of its own unique circumstances. (Louie, *supra*, 81 Cal.App.2d at p. 608.) The owner must inspect the premises or take other proper action to ascertain their condition, and if, by the exercise of reasonable care, the owner would have discovered the condition, he is liable for failing to correct it. (*Id.* at p. 606.)

(*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1206-1207.)

Here,

Plaintiff alleges that the instant fall occurred on December 14, 2023.

Defendant’s

own motion admits that it has owned the subject parking garage since October 5, 2023. (See Def. UMF 19.) Therefore, Defendant’s own UMF 19 demonstrates a dispute of a triable issue of fact as to whether the alleged dangerous condition existed long enough for a reasonably prudent person to have discovered it.

Open

and Obvious

Defendant

argues that even if the wheel stop was a dangerous condition, the danger was open and obvious.

Defendant

makes no attempt to explain what element, or elements, it is negating.

Here,

the Court does not find Defendant’s argument to be availing.

As

explained in *Donohue v. San Francisco Housing Authority*:

As explained in *Beauchamp v.*

Los Gatos Golf Course (1969) 273 Cal.App.2d 20 [77 Cal.Rptr.

914], the “obvious danger” exception to a landowner’s ordinary duty of

care is in reality a recharacterization of the former assumption of the

risk doctrine, i.e., where the condition is so apparent that the

plaintiff must have realized the danger involved, he assumes the risk of injury

even if the defendant was negligent. (*Id.*, at pp.

32-33.) As noted, this type of assumption of the risk has now been merged

into comparative negligence. In addition, recent authority makes it clear that

while a readily apparent danger may relieve the property owner of a duty

to warn, it no longer necessarily absolves him of a duty

to remedy that condition. (*Osborn v. Mission Ready Mix* (1990)

224 Cal.App.3d 104, 119 [273 Cal.Rptr. 457].)

(*Donohue*

v. San Francisco Housing Authority (1993) 16 Cal.App.4th 658, 665.)

Here,

there is a dispute of material fact as to whether or not the alleged danger was

open and obvious. (See Def. Ex. H (Excerpt from deposition of Plaintiff Wilda

Rokos), p. 40, Ins. 3-10 [Plaintiff stating she didn’t see the wheel stop in

the parking stall].)

Defendant’s

Reply

Defendant’s

reply argues that because Plaintiff did not look in the direction that she

intended to walk, the alleged dangerous condition cannot be seen as a possible

proximate cause of her fall.

The

Court does not find Defendant’s argument availing.

Defendant

argues that the opposition concedes that Plaintiff was not looking where she

was going at the time of the fall; therefore, because Plaintiff did not look in

the direction she intended to walk, the alleged dangerous condition cannot be seen as a possible proximate cause of her fall.

Here,

Defendant's Reply attempts to argue that Plaintiff was not looking where she was going at the time of the fall by citing to the following portion of Plaintiff's deposition testimony:

Q. Ms. Rokos, while you were standing next to your car with the closed car door, you testified that you were looking towards your husband; is that correct?

A. Yes.

Q. Okay. Where was your husband at this time?

A. The other side of the care.

(Def.

Ex. H (Excerpt from deposition of Plaintiff Wilda Rokos), p. 38, Ins. 14-19.)

For

Defendant to argue that Plaintiff "concedes" that she was not looking where she was going at the time of the fall, Defendant appears to misconstrue the Plaintiff's deposition testimony.

Plaintiff

does not in fact state that she was not looking where she was going at the tie of the fall.

Plaintiff

stated that when she was standing next to her car with the closed car, she was looking towards her husband. (Def. Ex. H (Excerpt from deposition of Plaintiff Wilda Rokos), p. 38, Ins. 14-19.) Plaintiff did not state that she was not looking where she was going at the time of the fall.

"Recent

authority makes it clear that while a readily apparent danger may relieve the property owner of a duty to warn, it no longer necessarily absolves him

of a duty to remedy that condition.” (Donohue v. San Francisco Housing Authority (1993) 16 Cal.App.4th 658, 665 citing Osborn v. Mission Ready Mix (1990) 224 Cal.App.3d 104, 119.)

Further, the elements of breach of duty and causation are ordinarily questions of fact for the jury's determination. (Vasquez v. Residential Investments, Inc. (2004) 118 Cal.App.4th 269, 278 citing Andrews v. Wells (1988) 204 Cal.App.3d 533, 538.)

Defendant does not meet its burden in demonstrating that the element of proximate causation cannot be established. Defendant obfuscated what the evidence actually demonstrates. The evidence that Defendant relies on demonstrates there is a dispute of material fact as to the proximate cause. (Def. Ex. H (Excerpt from deposition of Plaintiff Wilda Rokos), p. 38, lns. 14-19.)

TENTATIVE RULING SUMMARY

The Court is inclined to DENY Defendant's MSJ in its entirety for the reasons explained above. As explained above, Defendant either failed to meet its initial burden, or the Court cited to evidence that demonstrates a dispute of material fact.